

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 2141 of 2015

Md. Abul Bashar Mridha

..... Petitioner

-Versus-

Md. Shahidul Islam and others

..... Opposite Parties

Mr. Md. Zahangir Kabir, Advocate

..... For the petitioner

Mr. Abdul Quayum, Advocate

..... For the Opposite Parties

Heard on: 10.11.2016 and 14.11.2016

Judgment on: 15.12.2016

At the instance of the present Defendant-Appellant-petitioner, this Rule has been issued calling upon the opposite party No.1 to show cause as to why the judgment and order dated 18.05.2015 passed by the learned Additional District Judge, Patuakhali in Miscellaneous Appeal No. 67 of 2013 dismissing the appeal and affirming the order dated 01.09.2013 passed by the learned Assistant Judge, Boufall, Patuakhali in Title Suit No. 157 of 2013 allowing temporary injunction and thereby restraining the defendant No. 13 from approving the Managing Committee-2013 (Member's Secretary Election dated 07.07.2013 and President Election dated 13.07.2013) of Char Algi Secondary School, Boufall, Patuakhali should not be set aside.

The relevant facts for disposal of this Rule, inter alia, are that the present-opposite-party No. 1 as the plaintiff filed the Title

Suit No.157 of 2013 for a declaration that the formation of the School Managing Committee of Algi Secondary School, Boufall-2013 is without lawful authority. The plaintiff also filed an application for temporary injunction restraining the defendant No. 13 the School inspector of the Barisal board, from restraining him to approve the newly elected Managing Committee of this School.

After hearing the parties the learned Trial Court allowed the application granting an injunction. Being aggrieved the present opposite party No. 13, the School inspector of Barisal board, preferred the Appeal No. 67 of 2013 which was dismissed by the learned appellate court below by his judgment and order dated 15.05.2015. This revisional application has been filed challenging the said order and this Rule has been issued thereupon.

Mr. Zahangir Kabir, the learned Advocate for the present petitioner submits that during pendency of the appeal the learned appellate court below passed an order dated 28.11.2013 staying the judgment and order of the trial court passed on 01.09.2013 as such, newly elected committee of the present petitioner has been performing their day to day work in interest of the students and school itself.

The learned Advocate further submits that the present petitioner Md. Abul Bashir Mridha and other members of the Managing Committee formed the Managing Committee as per the provision of law but one of the guardian representatives, Shahidul

Islam, filed this suit and obtained an ad-interim order of temporary injunction from the trial court which was dismissed by the appellate court thus being aggrieved the defendant in the suit and being elected as the chairman of the Managing Committee the petitioner filed this revisional application because approval of the committee has been stayed.

The learned Advocate also submits that during pendency of this Rule the learned trial court passed order dated 06.10.2015 cancelling the Managing Committee of this School unlawfully and in violation of the order of this court, therefore the Rule should be made absolute.

The Rule has been opposed by the present plaintiff opposite parties.

Mr. Abdul Quyum, the learned senior Advocate appearing for the opposite party submits that the present petitioner was a party in the title suit and in the appeal the petitioner was the appellant, therefore, he should not be aggrieved by the judgment and order passed by the appellate court below therefore filing this revisional application by him thus obtaining the Rule by him is not maintainable.

The learned Advocate also submits that the School Managing Committee was approved on 17.12.2013 by the ad interim order of the appellate court on 28. 11. 2013, therefore both the Misc.

appeal and the Rule issued in this civil revision became infructuous.

Considering the submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with its annexure therein, in particular the impugned judgment and order, it appears that Char Algi Secondary School Boufall Patuakhali High School under Barisal Secondary and Higher Secondary Education Board Barisal an election for the Managing Committee of the School was scheduled to be held for electing the members of the Managing Committee. Accordingly, the election took place and the elected members were scheduled to be elected a president on 13.07.2013. The present petitioner was elected as the Chairman of the Managing Committee of the said School but the present suit was filed by one of the guardian representative for declaration that the elected Managing Committee should be cancelled and not to be given approval. While the suit has been pending the present opposite party filed an application for temporary injunction which was allowed on 01.09.2013 by the learned trial court and an appeal was filed by the one of the defendants of the suit as the inspector of School of the Board but the said appeal was dismissed, therefore, the present petitioner could not undertake the functions as the Managing Committee.

In the above circumstances it transpires to this court that the election took place on 07.07.2013 and approval of the Committee was given on 17.12.2013. In the provision of law a Managing Committee can only be valid for maximum of two years. As the committee was proved on 17.12.2013 thus the tenure of the Committee expired on 17.12.2015 as such the elected committee cannot lawfully function as the Managing Committee of the School.

In view of the above I am inclined to disposed of this Rule with the following direction.

The Upizilla Nirbhahi Officer, of P.S. Boufall, Patuakhali is hereby directed to undertake all necessary steps for a fresh election to be held within 60 days from the date of receipt of this judgment and order by forming an election committee under the supervision of the Barisal Board.

The learned Assistant Judge, Boufall, Patuakhali is hereby directed to conclude the hearing of the Title Suit No. 157 of 2013 within 15 days from the date of receipt of this judgment and order by giving all required opportunities to all the parties but without allowing any unnecessary adjournment.

The Thana Nirbhahi Officer patuakhali is directed to undertake all the day to day administrative activities of the School during the said period.

In the result, the Rule is disposed of .

The interim, order of stay granted at the time of issuance of the Rule upon the operation of the judgment and order dated 01.09.2013 passed by the learned Assistant Judge, Boufall, Patuakhali in Title Suit No. 157 of 2013 is hereby recalled and vacated.

The office is directed to communicate the judgment and order to all the concerned persons and the concerned court and also directed to send down the lower court records immediately.